

Babu Ram v. M.D., Paschimanchal Vidyut Vitaran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 23 February 2016 · Writ - C No. 7602 of 2016 · **Writ disposed of; relegated to clause 6.5 Supply Code forum.**

HEADNOTE

A consumer challenging the accuracy of an electricity bill cannot bypass paragraph 6.5 of the U.P. Electricity Supply Code, 2005 and invoke writ jurisdiction in the first instance. The Electricity Act, 2003 read with the Supply Code is a self-contained code providing a statutory remedial forum for billing disputes. The writ is disposed of with liberty to pursue that forum.

FACTUAL SUMMARY

Babu Ram filed a writ petition in the Allahabad High Court challenging an electricity bill of Rs. 66,625/- raised by Paschimanchal Vidyut Vitaran Nigam Ltd. When the matter was called, counsel for the respondents submitted that a dispute as to accuracy of the bill could be examined under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner had come to the High Court in the first instance without first invoking that statutory billing-dispute forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

accuracy of bills — statutory forum

HOLDING

Where the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005 is a self-contained code and paragraph 6.5 provides a statutory remedial forum for settling disputes pertaining to accuracy of bills, a consumer cannot bypass that forum and approach the High Court directly. The writ petition is disposed of, leaving the petitioner free to get the dispute redressed under paragraph 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED BILL OF RS. 66,625/-

Left to be redressed under paragraph 6.5 of the Supply Code. ¶ 1